IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD
(Special Original Jurisdiction)

MONDAY, THE EIGHTH DAY OF JUNE
TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE MRS JUSTICE SUREPALLI NANDA

WRIT PETITION NO: 35058 OF 2023

Between:

L. Sandeep Kumar Jadhav, S/o. Mohan Singh Jadhav, Aged 50 Years, Occ. Physical Director in Osmania University, R/o. H.No.5-1-60, Jambhagh, Gowliguda, Hyderabad, Telangana State.

...PETITIONER

AND

1. The State of Telangana, Represented by Principal Secretary, Medical and Health Department Dr. B.R.Ambedkar Telangana Secretariat, Hyderabad, Telangana State.
2. The Director of Medical Education, Government of Telangana, Sultan Bazar, Hyderabad.
3. Osmania Medical College, Represented by its Principal, Koti, Hyderabad.

...RESPONDENTS

Petition under Article 226 of the Constitution of India praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to issue appropriate Writ, Order or direction more particularly one in the nature of Writ of Mandamus by declaring the action of the respondent in not considering my case for regularization as wholly illegal, arbitrary and unconstitutional and violative of Article 14, 16 and 21 of Constitution of India and consequently direct the respondents to consider my case for regularization with effect from my original date of appointment i.e., 16.12.2006 with all consequential benefits.

I.A. NO: 1 OF 2023

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to direct the respondent to continue the petitioner in service and consider his case for regularization in terms of G.O. Ms. No. 38 dated 30.04.2023 pending disposal of the main Writ Petition.

Counsel for the Petitioner: SRI PRATAP NARAYAN SANGHI, Sr. COUNSEL, REP. SRI AVADESH NARAYAN SANGHI

Counsel for the Respondents: GP FOR SERVICES-I

The Court made the following: ORDER

IN THE HIGH COURT OF TELANGANA AT HYDERABAD

HON'BLE MRS. JUSTICE SUREPALLI NANDA

WRIT PETITION No.35058 OF 2023

DATED 08.06.2026

Between:

Sri L.Sandeep Kumar Jadhav

... Petitioner

And

The State of Telangana and Others

... Respondents

ORDER:

Heard Sri Pratap Narayan Sanghi, learned senior designated counsel representing Sri Avadesh Narayan Sanghi, learned counsel appearing on behalf of the petitioner on record and learned Government Pleader for Services-I appearing on behalf of the respondents.

2. The petitioner approached the Court seeking prayer as under:

> "... to issue appropriate Writ Order or direction more particularly one in the nature of Writ of Mandamus by declaring the action of the respondent in not considering my case for regularization as wholly illegal, arbitrary and unconstitutional and violative of Article 14, 16 and 21 of Constitution of India and consequently direct the respondents to consider my case for regularization with effect from my original date of appointment i.e.,16.12. 2006 with all consequential benefits in the interest of justice and pass..."

3. <u>The case of the petitioner, in brief, as per the averments made by the petitioner in the affidavit by the petitioner in support of the present writ petition, is as under:</u>

The petitioner possesses qualifications of M.A. (Hindi), M.P.Ed., M.Phil., and Ph.D. in Physical Education. The petitioner was initially appointed as Physical Director in Osmania Medical College pursuant to proceedings dated *16.12.2006* after undergoing a selection process. Subsequently, the Government issued *G.O.Rt. No. 86 dated 24.01.2007* for filling four posts of Physical Directors in various medical colleges. Upon selection, the petitioner was appointed on a contract basis through proceedings dated 15.06.2007. Thereafter, a Selection Committee vide proceedings *Rc.No.CDS/OMC/2008/1920 dated 07.07.2008,* appointed the petitioner as a full-time contract Physical Director.

It is further the case of the petitioner that since 16.12.2006, the petitioner has been continuously discharging duties as Physical Director without interruption, though petitioner's appointment was described under different nomenclatures such as outsourcing, part-time, and contract

employment and there was no change in duties or service conditions despite such reclassification. Following the filing of *O.A. Nos. 7915 of 2008 and 6905 of 2009* by similarly situated employees, the petitioner filed *W.P.(TR) No. 1883 of 2017,* wherein this Court, by order dated *20.03.2019*, directed consideration of petitioner's representation dated 20.01.2014. However, petitioner's claim was rejected through proceedings dated 25.02.2020. Aggrieved thereby, petitioner had filed *W.P. No. 13106 of 2020* seeking regular pay scale benefits. Subsequently, relying on *G.O.Ms. No. 38 dated 30.04.2023*, under which similarly situated employees were regularized, the petitioner had filed the present writ petition seeking regularization of petitioner's services from 16.12.2006 with all consequential benefits.

4. PERUSED THE RECORD:

A. The proceedings vide Rc.No.CDS/OMC/2007, dated 15.06.2007 issued by the respondent No.3 in favour of the petitioner is extracted hereunder:-

> **With reference to the above cited, I am to inform you that Sri. L. Sandeep Kumar, Jadav, is appointed as Physical Director in this College on third party contract basis for a period of 11 Months with consolidated pay of Rs. 6,000.00 (Rupees Six**

Thousand Only.) per month with following terms and conditions.

1. He should assist the existing Physical Director in Maintaining the Ground and Guiding the Students in various Games.

2. He should work 01 hours in the Morning from 7.30 A.M. to 08.30 A.M. and from Evening 4.00 PM. to 07.00 P.M. in the evening.

3. He should help in university selections which will be held at O.M.C., or else where.

4. He should assist the Principal, in all the sports activities in the College.

5. He can be terminated at any time if the committee is not satisfied by his work.

6. The Salary Cheque will be paid in the name of the firm.

7. He should sign the attendance in the Principal, Peshi Every Day.

The Salary will be paid from College Development Fund after obtaining the satisfactory certificate from Vice Principal, OMC, Hyderabad, and Sports Advisor of this College,

B. The letter vide Rc.No.CDS/OMC/2009, dated 20.06.2009 addressed by the respondent No.3 to the Deepthi Social Organization is extracted hereunder:-

With reference to the subject cited, I am to inform you that Sri L.Sandeep kumar Jadhav, sponsored earlier from your firm as Physical Director **has been re-appointed in view of Inter medical College Sports and Games which are going to be held in this College with a consolidated pay of Rs.6,000/- P.M.** with following terms & conditions for a period of (6) months from the date of reporting to

duty. 1.He should sign the Attendance at the Principal Peshi everyday.

2.He should work from 10.00 A.M. to 5.00 P.M. everyday.

3. He is appointed to assist the Principal and Students in all Sports events held in this college and any events held out of the college.

4. He should work for extra hours if necessary.

5.He can be terminated at any time without assigning any reasons and if committee is not satisfied by his work.

6. His salary will be paid from the ADF budget allotted to this college.

The salary will be paid after obtaining satisfactory certificate and Attendance from Vice-Principal and Assistant Director (Admn.), OMC, Hyd

C. The relevant portion of the proceedings vide Rc.No.CDS/OMC/2015/473/906, dated 19.05.2015 addressed by the 3rd respondent to the respondent No.2 is extracted hereunder:-

The Government vide Memo No 6373/A2/2011 Dt. 13.10.2011 has requested to furnish proposals as per Cir. Memo. No. 11606-B/419/A2/SMPC/2009, Fin Dept., dates 24-04-2009 for taking further action on the request of Sri. L.Sandeep Jadhav as Physical Director **for extension of contract period and payment of salary under 300 OCS** for which it has been ordered to obtain the communication from the office of the DME. AP., but the proposals have been forwarded (Copy enclosed)vide 16th cited

D. The relevant portion of the order, dated 20.03.2019 passed in W.P.(TR) No.1883 of 2017 is extracted hereunder:-

> **"This Court, having considered the rival submissions, is of the considered view that the writ petition can be disposed of directing the respondents to consider the representation submitted by the petitioner, dated 20.01.2014, and pas appropriate orders, in accordance with law, within a period of eight weeks from the date of receipt of copy of this order."**

E. The proceedings vide Rc.No.16153/G2/2019, dated 25.02.2020 of the 2nd respondent is extracted hereunder:-

With reference to the letter of the Principal, Osmania Medical College, Hyderabad vide reference 1" and 2nd cited and keeping in view of the representation of Sri L.Sandeep Kumar Jadhav, working as Physical **Director on outsourcing basis(through third party agency)** is examined as per rules and it is informed that it is not feasible to draw salary from 300 OCS as his services are being used by the Principal, Osmania Medical College, Hyderabad from CDS i.e College Development Society.

Hence the representation Dt. 20-1-2014 of L. Sandeep Kumar Jadhav, Physical Director have been examined and rejected.

F. The relevant portion of the G.O.Ms.No.38, dated 30.04.2023 is extracted hereunder:-

2. The above administrative departments and HoDs shall take necessary further action for issue of individual name-wise orders and appointment orders in terms of the proposals submitted by them, They shall also ensure that the appointments are made against sanctioned clear vacancies, no senior eligible person is overlooked or omitted and due verification of the relevant documents/certificates is made.

G. The proceedings vide Lr.Rc.No.CDS/OMC/2006, dated 30.12.2006 addressed by the respondent No.3 to the M/s. Deepthi Social Organization, Hyderabad is extracted hereunder:-

> M/s, Deepthi Social Organisation, Hyderabad is hereby informed that the services of Sri Sandeep Kumar Jadhav, Physical Director as sponsored by you has been accepted with consolidated pay of Rs.. 6000/-per month under the supervision of the sports advisor Dr. Kumara Swamy Tutor in Anatomy Dept of Osmania Medical College, Hyderabad.

H. Memo No.6373/A.2/2011, dated 14.12.2012 issued by the Health,Medical and Family Welfare (A.2) Department, Government of Andhra Pradesh is extracted hereunder:-

> **" The attention of the Director of Medical Education, Hyderabad is invited to the reference cited and he is requested to examine to fill up the vacant posts of Physical Directors on regular basis and furnish a report to Government for taking further action in the matter.**

I. The letter vide Rc.NO.19568/E3.C/2009, dated 12.03.2013 addressed by the respondent No.2 to the Principal Secretary to Government, Health, Medical & family Welfare Department, A.P., Secretariat, Hyderabad is extracted hereunder:-

I invite kind attention of the Government to the reference cited on the above subject, I have to state that the subject matter has been examined based on the information received from the teaching institution while requesting for extension of contract

period of the Physical Directors working in the teaching institutions and it is found that, the services of the Physical Directors in the teaching institutions are very essential as per the MCI norms.

Further, I am to inform that, as per the SMPC G.O.Ms.No. 487. dt. 03-03-2010, the total cadre strength of the Physical Director in the state under the administrative control of the Director of Medical Education, A.P., Hyderabad in the teaching institutions are 12 posts. Out of it two Physical directors on regular basis i.e. one is at SV.Medical College, Tirupathi and another one is at Siddhartha Medical College, Vijayawada. Two posts of Physical Directors which are sanctioned to Government, Medical College, Ananthapur and Rangaraya Medical College, Kakinada, on temporary basis and remaining posts of Physical Directors are fallen vacant and some was occupied by the **contract based and out sourcing employees Ie., at (1) Osmania Medical College, Hyderabad** (2) Gandhi Medical College, Secunderabad (3) Guntur Medical College. Guntur (4) Kurnool Medical College, Kurnool (5) Government Dental College & Hospital, Hyderabad (6) Government Dental College & Hospital, Vijayawada (7) Andhra Medical College, Visakhapatnam (8) Kakatiya Medical College, Warangal etc.

Further, as per the Government orders issued in G.O.Ms.No. 154, HM&FW (A2) Dept., dt: 04-05-2012. The following is the methods of appointment to the post of Physical Director

I. (1) By appointment by transfer from the category of Physical Director (Non-Gazetted) working in Medical Colleges.

(2) If no suitable or eligible candidates is available for appointment by method (1) above by Direct recruitment.

II Rule (5) Qualification.

Must posses a Degree in Physical Director of Government College of Physical Education. Hyderabad or a Diploma in Physical Education in YMCA college of Physical Education. Saidapet or if any recognised Institution or an equivalent qualification.

III. The existing scale to the post of Physical Director is Rs. 20680-46960.

Therefore, I request the Government to issue necessary orders in the matter at an early date.

J. The proceedings, vide Rc.No.1324/Estt/OMC Hyd/2019, dated 11.12.2019 addressed by the respondent No.3 to the respondent No.2 is extracted hereunder:-

With reference to subject cited, the following certain information pertains to the Post of Physical Director for appointment at Osmania Medical College Hyderabad submitting for taking necessary action.

It has been given understand vide L.r. No. 19568/E3.C/2009 dated 11-10-2009, to take action for appointment of Physical Director post on contract basis at OMC Hyderabad, duly following the procedure laid down in the GO.Ms.No. 1040 HM&FW(A2) Department, dated 22.09.2001. But, due to not obtaining of approval from the Director Medical Education AP Hyderabad, the appointment of Physical Director on contract basis procedure is been cancelled and the matter was taken up to the notice of the Director of Medical Education AP Hyderabad vide reference 1 cited.

with Accordingly, a letter was addressed to the Government vide reference 2nd cited with a request to issue necessary orders on the letter submitted by the Principal OMC vide reference 1st cited for appointment and extension of contract services of Physical Director, under 300 OCS.

Further, the Government has instructed to furnish the proposals as per the Circular Memo No.11606-B/4/19/A2/SMPC/2009 Fin(SMPC) Dept. dated 24-4-2009 for extension of contract period and payment of salary to the contract employee under 300 OCS vide reference 3rd cited. Consequently, a detailed proposal was submitted to the Government vide reference 4th and 5th cited.

Later, the Government have asked to examine towards fill up the vacant posts of Physical Directors on regular Basis and furnish a report to the Government for taking necessary action vide reference 6th cited.

In accordance to the Government Memo, a report has been submitted to the Government vide reference 7th cited and no any other orders have been received as on date in the said matter by this office.

Further, the Government have requested the Commissioner, of Collegiate Education Hyderabad to offer her remarks on the feasibility of deputation of Physical Directors working under her control of DME If so, and furnish the necessary proposals to this department. Vide reference 8th cited.

In connection with the above, the Commissioner of Colegiate Education has offered here remarks in the letter vide reference 9th cited stating that, the Department of Collegiate Education cannot spare the services of Physical Director on deputation basis to the Department of Medical Education Hyderabad.

In view of the all above, I am to state that, the post of Physical Director which is vacant since long period at OMC Hyderabad on regular basis sanctioned vide G.O.Ms.No.132 Fin (SMPC) dated 08.06.2007 and the Medical Council of India (Team) has insisted to fill up the post immediately on regular basis.

Therefore, I request you to kindly arrange to notify the vacancy of Physical Director (1) at Osmania Medical College, Hyderabad towards to fill up on regular basis.

DISCUSSION AND CONCLUSION:-

5. The Learned Counsel appearing on behalf of the petitioner mainly puts forth the following submissions:

a) Despite petitioner's qualifications and long years of service, the petitioner had been subjected to arbitrary treatment by the respondents depriving the petitioner of regularization and service benefits for more than two decades.

b) Pursuant to a notification issued by Osmania Medical College, the petitioner was selected through a due selection

process and had been appointed as Physical Director vide proceedings dated 16.12.2006.

c) Subsequently, the Government issued *G.O.Rt. No. 86,* dated 24.01.2007, proposing to fill four posts of Physical Director in various Medical Colleges, including Osmania Medical College. The petitioner applied for the said post and, upon selection, the petitioner was appointed on contract basis vide proceedings dated 15.06.2007, though the petitioner had continued to discharge the same duties of Physical Director.

d) Thereafter, a Selection Committee constituted by the competent authority again selected the petitioner and appointed the petitioner as a full-time Physical Director on contract basis *vide Proceedings* Rc. No. CDS/OMC/2008/1920, dated 07.07.2008.

e) The appointment by contract is one of the recognized modes of recruitment under *Rule 4 of the Telangana State and Subordinate Service Rules* and that, notwithstanding changes in nomenclature such as outsourcing, part-time or contract employee, the petitioner has continuously worked as Physical Director without any interruption from 16.12.2006 onwards.

f) There exists a sanctioned vacancy of Physical Director in Osmania Medical College and that the petitioner has been working against the said vacancy since 2006.

g) Two similarly situated Physical Directors, namely T. Rajendra Raj and Stanley Jones, had approached the erstwhile Administrative Tribunal and were continued in service. However, after they secured alternative employment elsewhere and discontinued their services, the petitioner alone continued to discharge duties uninterruptedly in the college.

h) Aggrieved by the respondents' stand that petitioner's case could not be considered in view of the Tribunal orders passed in *O.A. No. 7915 of 2008 and O.A. No. 6905 of 2009*, the petitioner filed *W.P. (Tr.) No. 1883 of 2017* before this Court. By order dated 20.03.2019, this Court directed the respondents to consider petitioner's representation dated 20.01.2014. However, the respondents, through proceedings dated 25.02.2020, rejected petitioner's claim for grant of regular scale of pay under G.O.Ms. No. 300, without properly considering petitioner's continuous service and claim for regularization.

i) Challenging the proceedings dated 25.02.2020 and seeking the regular scale of pay attached to the post of Physical Director,

the petitioner filed *W.P. No. 13106 of 2020.* Despite continuously performing duties in a regular post for several years, the respondents have repeatedly altered the nomenclature of petitioner's appointment solely to deny petitioner's regular status and attendant service benefits, while extracting services identical to those rendered by regular employees.

j) The Government issued G.O.Ms. No. 38, dated 30.04.2023, notifying various vacancies and extending the benefit of regularization to several similarly situated employees. The said G.O. also included a vacancy of Physical Director under the Director of Medical Education, which, continues to remain vacant.

k) Despite petitioner's uninterrupted service from 16.12.2006 and availability of vacancies, the respondents have failed to consider petitioner's case for regularization, thereby acting arbitrarily and discriminatorily in violation of Articles 14, 16 and 21 of the Constitution of India.

Based on the aforesaid submissions, the learned counsel appearing on behalf of the petitioner contends that the petitioner is entitled for the regularization of petitioner's services with effect from 16.12.2006 with all consequential benefits.

6. <u>The learned Government Pleader for Services-I appearing on behalf of the respondents mainly puts forth the following submissions:</u>

a) The petitioner was never appointed by the Government through any regular recruitment process. On 16.12.2006, a third-party outsourcing agency, Deepthi Social Organisation, forwarded two names to Osmania Medical College for engagement on a one-year contract basis, one of whom was the petitioner. This correspondence itself established that the engagement was purely through an outsourcing agency.

b) Pursuant thereto, on 30.12.2006, the Principal, Osmania Medical College, informed Deepthi Social Organisation that the services of the petitioner as Physical Director had been accepted on a consolidated monthly remuneration under the supervision of the Sports Advisor. This arrangement clearly demonstrated the absence of any employer-employee relationship between the petitioner and the Government.

c) The reliance is placed upon *G.O.Rt. No. 86* dated 24.01.2007, whereby the Director of Medical Education was permitted to engage four Physical Directors through

outsourcing agencies for a period of one year and that the Government itself sanctioned only outsourced engagements and not regular appointments.

d) Upon completion of the academic year, the petitioner's services were terminated on 30.04.2007. Subsequently, owing to institutional requirements, the petitioner was re-engaged on 15.06.2007 for eleven months through the same outsourcing agency. Such- repeated engagements and disengagements negate any claim of continuous service.

e) In June 2008, a fresh process was undertaken for engaging a Physical Director on a contract basis. The petitioner was again engaged on 07.07.2008. Around the same time, another candidate, Sri T. Rajender Raj, was selected and appointed through a different outsourcing agency pursuant to *G.O.Rt. No. 1291* dated 16.08.2008.

f) Following interim orders passed by the Andhra Pradesh Administrative Tribunal in *O.A. No. 7915 of 2008* filed by Sri T. Rajender Raj, the petitioner's services were terminated on 04.10.2008 and Rajender Raj was continued in the post. Thereafter, the petitioner sought re-engagement through a representation dated 11.05.2009

and was once again engaged through Deepthi Social Organisation on 20.06.2009 for a limited period.

g) The petitioner subsequently filed *W.P. (TR) No. 1883 of 2017* seeking continuation of petitioner's services. By order dated 20.03.2019, this Court directed consideration of petitioner's representation. Thereafter, a speaking order dated 25.02.2020 rejected petitioner's claim, specifically recording that regular salary could not be drawn from Government funds and that petitioner's services were being utilized through the College Development Society. Significantly, this speaking order has never been challenged.

h) The present writ petition seeking regularization from the date of initial engagement is wholly misconceived. The petitioner was at all times a third-party contractual worker, engaged, terminated and re-engaged depending upon institutional necessity. He never held a sanctioned post, never underwent a constitutional recruitment process, and never acquired any legal right to regularization.

i) The judgments relied upon by the petitioner are distinguishable on facts. In those cases, the employees had undergone recognized selection processes, rendered

uninterrupted service for long durations, worked against sanctioned posts, or established discrimination through regularization of similarly situated persons. None of those factors exist in the present case.

j) Reliance is placed on the Division Bench judgment of this court dated 19.11.2024 in W.P.No.10744 of 2023 in"*V. Praveen Kumar v. State of Telangana*" which declared Section 10-A of the "Telangana Regulation of Appointments to Public Services and Rationalisation of Staff Pattern and Pay Structure Act, 1994" as unconstitutional and held that contractual employees cannot thereafter be regularized.

Based on the aforesaid submissions, the learned Government Pleader for Services-I appearing on behalf of the respondents contends that the present writ petition needs to be dismissed.

7. The learned Government Pleader for Services-I appearing on behalf of the Respondents placed reliance upon the following judgments in support of respondent's case:-

- **Secretary, State of Karnataka& Ors v. Umadevi & Ors, (2006) 4 SCC 1**

- Indian Drugs & Pharmaceuticals Ltd. v. Workmen, Indian Drugs & Pharmaceuticals Ltd., (2007) 1 SCC 408
- Full Bench Judgment in W.P. No. 27295 of 1998dated 09.11.2009
- State of Jammu & Kashmir& Ors v. District Bar Association, Bandipora(2017) 3 SCC 410
- Vibhuti Shanker Pande v. State of Madhya Pradesh, (2023) 3 SCC 639
- Ganesh Digamber Jambhrunkar v. State of Maharashtra, 2023 LiveLaw (SC) 801
- V. Praveen Kumar v. State of Telangana, W.P. No. 10744 of 2013 & batch, Judgment dated 19.11.2024
- Satish Chander Sharma v. State of Himachal Pradesh in W.P. (Civil) No. 179 of 2018, Judgment dated 16.04.2025
- M.D. Raheem v. State of Telangana W.P. No. 34477 of 2023, Judgment dated 11.07.2025

8. <u>This Court on perusal of record makes the following observations and notes them down as follows:-</u>

i) The limited relief sought for by the petitioner is a direction to the respondents to consider the request of the petitioner for regularization with effect from the date

of the original appointment of the petitioner i.e., 16.12.2006 along with all consequential benefits.

ii) The petitioner herein had been appointed as Physical Director of Osmania Medical College, Hyderabad on a third party contract basis and to that effect, the respondent No.3 addressed a letter, vide Lr.Rc.No.CDS/OMC/2006, dated 30.12.2006 (referred to and extracted above) informing M/s. Deepthi Social Organization, Hyderabad that the services of the petitioner as Physical Director as sponsored by the M/s. Deepthi Social Organization had been accepted on a consolidated pay of Rs.6,000/- per month under the supervision of Dr.Kumara Swamy, Sports Advisor and Tutor in Anatomy Dept., of Osmania Medical College, Hyderabad.

iii) The petitioner vide Rc.No.CDS/OMC/2007, dated 15.06.2007 (referred to and extracted above) addressed by the respondent No.3 to the M/s. Deepthi Social Organization, Hyderabad, was informed that the petitioner had been appointed as Physical Director of Osmania Medical College on a 3rd party contract basis for a period

of 11 months on a consolidated pay of Rs.6,000/- per month subject to certain specific terms and conditions.

iv) The letter vide Rc.No.CDS/OMC/2009, dated 20.06.2009(referred to and extracted above) issued by the respondent No.3 to the M/s.Deepthi Social Organization, again intimated that the petitioner had been reappointed as Physical Director of Osmania Medical College on 3rd party contract basis for a period of six months from the date of reporting to duty.

v) That vide Memo No.6373/A.2/2011, dated 14.12.2012 (referred to and extracted above) the respondent No.1 requested the respondent No.2 to examine the feasibility of filling up the vacant posts of Physical Directors on a regular basis and to furnish a report to Government for taking further action in the matter, specifically referring to the appointment of the petitioner herein as Physical Director on a contract basis at Osmania Medical College, Hyderabad under 300 OCS.

vi) That vide letter Rc.NO.19568/E3.C/2009, dated 12.03.2013 (referred to and extracted above) respondent

No.2 had requested the 1st respondent herein to issue necessary orders pertaining to the subject issue of appointment of the petitioner as Physical Director on contract basis at Osmania Medical College at Hyderabad under 300 OCS.

vii) That the letter vide Rc.No.CDS/OMC/2015/473/906, dated 19.05.2015 addressed by the 3rd respondent to the respondent No.2 sought certain clarifications and detailed information pertaining to the termination and subsequent reappointment to the post of Physical Director in Osmania Medical College on a 3rd party contract basis.

Viii) The last few paragraphs of the said proceedings, dated 19.05.2025 clearly indicate that the vide memo No.6373/A2/2011, dated 13.10.2011 a request had bee made to furnish proposals as per Circular Memo No.11606-B/419/A2/SMPC/2009, Finance Department, dated 24.04.2009, for taking further action on the request of the petitioner herein for extension of the contract period and payment of salary under 300 OCS.

ix) It was also directed that the communication be obtained from the office of the DME, A.P., and further the salary of the petitioner had been enhanced from Rs.6,000 to Rs.12,000/-per month, which is being paid from the Academic Development Fund.

x) This Court passed orders, dated 20.03.2019 in W.P.(TR) No.1883 of 2017 filed by the petitioner herein, directing the respondents therein to consider the representation of the petitioner, dated 20.01.2014 pertaining to continuation of the petitioner herein in service as Physical Director at Osmania Medical College, within a period of eight weeks from the date of receipt of copy of the order in accordance to law.

xi) Proposals had been submitted for filling the vacant post of Physical Director at Osmania Medical College at Hyderabad on a regular basis, as the post had remained vacant for a considerable period and the proposal sought notification of the said post to the concerned Authority for recruitment on regular basis as reflected in the proceedings, dated 11.12.2019 of the 3rd respondent.

xii) Proceedings, dated 11.12.2019 clearly indicates that the Government had vide Memo, dated 14.12.2012 directed the Authorities to examine the issue of filling up the vacant post of Physical Director on a regular basis and furnish a report to the Government for taking necessary action. In response to the Government Memo, a report had been submitted to the Government vide letter, dated 12.03.2013 by the 2nd respondent.

xiii) The last two paragraphs of the said letter, dated 11.12.2019 (referred to and extracted above) clearly indicate that the post of Physical Director sanctioned vide G.O.Ms..No.132, Fin(SMPC) Dept., dated 08.06.2007 had remained vacant for a long period at OMC Hyderabad. The letter further requested that the said post be filled immediately on a regular basis and specifically sought notification of the vacancy of Physical Director (01) at Osmania Medical College Hyderabad towards to fill up on regular basis.

xiv) The request made by the petitioner in pursuance to the orders of this Court, dated 20.03.2019 passed in WP(TR) No.1883 of 2017 was however rejected without

assigning any reasons by the respondent No.2 vide proceedings, dated 25.02.2020 (referred to and extracted above) vide the said proceedings, dated 25.02.2020, the petitioner had been informed that the request of the petitioner to continue the petitioner as Physical Director on an outsourcing basis through the 3rd party agency is not feasible and also the payment of salary under 300 OCS is not permissible, since the petitioner's services are being utilized by the Osmania Medical College, Hyderabad through CDS i.e., College Development Society.

xv) That vide G.O.Ms.No.38, dated 30.04.2023 orders had been issued permitting the regularization of eligible contract personnel against the sanctioned posts in terms of the orders issued vide G.O.Ms.No.16, Finance (HRM.I) Department, dated 26.02.2016 and the post of one (01) Physical Director (Gazetted) is notified in the said detailed G.O.ms.nO.38, dated 30.04.2023. The Government further directed the concerned Department to take necessary action for issuance of individual name- wise appointment orders in terms of the proposals submitted by them. The said G.O. also mandated the

Administrative departments and HoDs to ensure that the appointments are made only against sanctioned clear vacancies and that no senior eligible person is overlooked or omitted and due verification of the relevant documents/certificates was also directed.

9. This Court opines that the proceedings, dated 25.02.2020 passed by the respondent no.2 in pursuance to the orders of this Court, dated 20.03.2019 passed in W.P.(TR) No.1883 of 2017, is an order passed without application of mind, in a routine mechanical manner contrary to there own records i.e., proceedings, dated 11.12.2019 and also the G.O.Ms.No.38, dated 30.04.2023.

10. Learned Government Pleader for Services-I appearing on behalf of the respondents opposed the grant of relief as prayed for by the petitioner mainly on the following grounds:-

i) The petitioner is a 3rd party contract employee

ii) There is no continuity of service in respect of the petitioner.

iii) There is no employer –employee relationship between the petitioner and the respondents at any point of time, since the date of petitioner's appointment till on date.

iv) Once, the petitioner had accepted the terms and conditions of the appointment, the petitioner cannot turn back and filed the present writ petition seeking the relief which is not part of the contract at any point of time.

v) The petitioner had not been appointed through any constitutional or statutory recruitment process as such the relief sought for by the petitioner cannot be granted.

11. The judgments relied upon by the learned Senior designated counsel appearing on behalf of the petitioner do not apply to the facts of the present case. The said judgments have no relevancy since the petitioner had been appointed through third party contract and there is no employer-employee relationship. The petitioner was appointed through a correspondence between the 3rd party agency and Osmania Medical College. There was no approval of any regular post of Physical Director at any point of time and that no proposal had been sent to the Government for sanction of the said post.

Based on the aforesaid submissions, the Learned Government Pleader for Services-I appearing on behalf of the respondents contended that the no relief can be granted to the petitioner herein.

12. This Court opines that the pleas put-forth by the Learned Government Pleader for Services-I appearing on behalf of the respondents that there is no approval of regular post of Physical Director at any point of time and that no proposal had ever been sent to the Government for sanction of post is contrary to the contents of the proceedings, dated 11.12.2019 of the 3rd respondent addressed to the 2nd respondent (referred to and extracted above) and also G.O.Ms.No.38, dated 30.04.2023 which specifically refers to the regularization of the service of the contract personnel.

13. This Court opines that the 2nd respondent while issuing proceedings in pursuance to the order, dated 20.03.2019 passed in W.P(TR)No.1883 of 2017, did not take into consideration of the relevant material correspondence exchanged between the Authorities concerned on the subject issue. The 2nd respondent

mechanically rejected the request of the petitioner for continuation of the petitioner in service for the post of Physical Director by merely stating that the same is not feasible. The proceedings, vide Rc.No.16153/G2/2019, dated 25.02.2020 of the 2nd respondent are admittedly without application of mind in a routine casual manner and contrary to their own records.

14. This Court opines that the request of the petitioner for grant of the prayer as sought for in the present writ petition to consider the case of the petitioner for regularization w.e.f. petitioner's original date of appointment i.e., 6.02.2006 with all consequential benefits, needs to be considered in view of the clear observations in various Courts' judgments (referred to and extracted below):-

A. The judgment of the Apex Court dated 20.12.2024, reported in 2024 LawSuit(SC) 1209 in Jaggo Anita and others v. Union of India and others, and the relevant paragraph Nos.12, 13, 24, 26, 27 and 28 are extracted hereunder:

"12. Despite being labelled as "part-time workers," the appellants performed these essential tasks on a daily and continuous basis over extensive periods, ranging from over a decade to nearly two decades. Their engagement was not sporadic or temporary in nature, instead, it was recurrent, regular, and akin to the responsibilities typically associated with sanctioned posts. Moreover, the respondents did not engage any other personnel for these tasks during the appellants tenure, underscoring the indispensable nature of their work.

13. The claim by the respondents that these were not regular posts lacks merit, as the nature of the work performed by the appellants was perennial and fundamental to the functioning of the offices. The recurring nature of these duties necessitates their classification as regular posts, irrespective of how their initial engagements were labelled. It is also noteworthy that subsequent outsourcing of these same tasks to private agencies after the appellants' termination demonstrates the inherent need for these services. This act of outsourcing, which effectively replaced one set of workers with another further underscores that the work in question was neither temporary nor occasional.

24. The landmark judgment of the United State in the case of Vizcaino v Microsoft Corporation [97 F.3d 1187 (9th Cir. 1996)] serves as a pertinent example from the private sector, illustrating the consequences of misclassifying employees to circumvent providing benefits. In this case, Microsoft classified certain workers as independent contractors, thereby denying them employee benefits. The U.S. Court of Appeals for the Ninth Circuit determined that these workers were, in fact, common-law employees and were entitled to the same benefits as regular employees. The Court noted that large Corporations have increasingly adopted the practice of hiring temporary employees or independent contractors as a means of avoiding payment of employee benefits, thereby increasing their profits. This judgment underscores the principle that the nature of the work performed, rather than the label assigned to the worker, should determine employment

status and the corresponding rights and benefits. **It highlights the judiciary's role in rectifying such misclassifications and ensuring that workers receive fair treatment.**

26. While the judgment in Uma Devi (supra) sought to curtail the practice of backdoor entries and ensure appointments adhered to constitutional principles, it is regrettable that its principles are often misinterpreted or misapplied to deny legitimate claims of long serving employees. This judgment aimed to distinguish between "illegal" and "irregular" appointments. **It categorically held that employees in irregular appointments, who were engaged in duly sanctioned posts and had served continuously for more than ten years should be considered for regularization as a one-time measure.** However, the laudable intent of the judgment is being subverted when institutions rely on its dicta to indiscriminately reject the claims of employees, even in cases where their appointments are not illegal, but merely lack adherence to procedural formalities. Government departments often cite the judgment in Uma Devi (supra) to argue that no vested right to regularization exists for temporary employees, overlooking the judgment's explicit acknowledgment of cases where regularization is appropriate. **This selective application distorts the judgment's spirit and purpose, effectively weaponizing it against employees who have rendered indispensable services over decades.**

27. In light of these considerations, in our opinion, it is imperative for government departments to lead by example in providing fair and stable employment. Engaging workers on a temporary basis for extended periods, especially when their roles are integral to the organization's functioning, not only contravenes international labour standards but also exposes the organization to legal challenges and **undermines employee morale. By ensuring fair employment practices, government institutions can reduce the burden of unnecessary litigation, promote job security, and uphold the principles of justice and fairness that they are meant to embody. This approach aligns with international standards and sets a positive precedent for the private sector to**

follow, thereby contributing to the overall betterment of labour practices in the country.

28. In view of the above discussion and findings, the appeals are allowed. The impugned orders passed by the High Court and the Tribunal are set aside and the original application is allowed to the following extent:

> i. The termination orders dated 27.10.2018 are quashed;
>
> **ii. The appellants shall be taken back on duty forthwith and their services regularised forthwith. However, the appellants shall not be entitled to any pecuniary benefits/back wages for the period they have not worked for but would be entitled to continuity of services for the said period and the same would be counted for their post-retiral benefits."**

B. The Judgment of the Apex Court dated 31.01.2025 reported in 2025 INSC 144 in "SHRIPAL AND ANOTHER v. NAGAR NIGAM, GHAZIABAD", in particular, the relevant para Nos.15 to 19 are extracted hereunder:

> **"15. It is manifest that the Appellant Workmen continuously rendered their services over several years, sometimes spanning more than a decade. Even if certain muster rolls were not produced in full, the Employer's failure to furnish such records—despite directions to do so—allows an adverse inference under well-established labour jurisprudence. Indian labour law strongly disfavors perpetual daily-wage or contractual engagements in circumstances where the work is permanent in nature. Morally and legally, workers who fulfil ongoing municipal requirements year after year cannot be dismissed summarily as dispensable, particularly in the absence of a genuine contractor agreement.** At this juncture, it would be appropriate to recall

the broader critique of indefinite "temporary" employment practices as done by a recent judgement of this court in **Jaggo v. Union of India** in the following paragraphs:

> "22. The pervasive misuse of temporary employment contracts, as exemplified in this case, reflects a broader systemic issue that adversely affects workers' rights and job security. In the private sector, the rise of the gig economy has led to an increase in precarious employment arrangements, often characterized by lack of benefits, job security, and fair treatment. Such practices have been criticized for exploiting workers and undermining labour standards. Government institutions, entrusted with upholding the principles of fairness and justice, bear an even greater responsibility to avoid such exploitative employment practices. When public sector entities engage in misuse of temporary contracts, it not only mirrors the detrimental trends observed in the gig economy but also sets a concerning precedent that can erode public trust in governmental operations.
>
> .....
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> 25. It is a disconcerting reality that temporary employees, particularly in government institutions, often face multifaceted forms of exploitation. While the foundational purpose of temporary contracts may have been to address short-term or seasonal needs, they have increasingly become a mechanism to 2024 SCC OnLine SC 3826 evade long-term obligations owed to employees. These practices manifest in several ways:
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> **• Misuse of "Temporary" Labels: Employees engaged for work that is essential, recurring, and integral to the functioning of an institution are often labelled as "temporary" or "contractual," even when their roles mirror those of regular employees. Such misclassification deprives workers of the dignity, security, and benefits that regular employees are entitled to, despite performing identical tasks.**
>
> • Arbitrary Termination: Temporary employees are frequently dismissed without cause or notice, as seen in the present case. This practice undermines the principles of natural justice and subjects workers to a state of constant insecurity, regardless of the quality or duration of their service. • Lack of Career Progression: Temporary employees often find themselves excluded from opportunities for skill development, promotions, or

incremental pay raises. They remain stagnant in their roles, creating a systemic disparity between them and their regular counterparts, despite their contributions being equally significant.

• Using Outsourcing as a Shield: Institutions increasingly resort to outsourcing roles performed by temporary employees, effectively replacing one set of exploited workers with another. This practice not only perpetuates exploitation but also demonstrates a deliberate effort to bypass the obligation to offer regular employment.

• Denial of Basic Rights and Benefits: Temporary employees are often denied fundamental benefits such as pension, provident fund, health insurance, and paid leave, even when their tenure spans decades. This lack of social security subjects them and their families to undue hardship, especially in cases of illness, retirement, or unforeseen circumstances."

16. The High Court did acknowledge the Employer's inability to justify these abrupt terminations. Consequently, it ordered re-engagement on daily wages with some measure of parity in minimum pay. Regrettably, this only perpetuated precariousness: the Appellant Workmen were left in a marginally improved yet still uncertain status. While the High Court recognized the importance of their work and hinted at eventual regularization, it failed to afford them continuity of service or meaningful back wages commensurate with the degree of statutory violation evident on record.

17. In light of these considerations, the Employer's discontinuation of the Appellant Workmen stands in violation of the most basic labour law principles. Once it is established that their services were terminated without adhering to Sections 6E and 6N of the U.P. Industrial Disputes Act, 1947, and that **they were engaged in essential, perennial duties, these workers cannot be relegated to perpetual uncertainty. While concerns of municipal budget and compliance with recruitment rules merit consideration, such concerns do not absolve the Employer of statutory obligations or negate equitable entitlements. Indeed, bureaucratic limitations cannot trump the legitimate rights of workmen who have served continuously in de facto regular roles for an extended period.**

18. The impugned order of the High Court, to the extent they confine the Appellant Workmen to future daily-wage

engagement without continuity or meaningful back wages, is hereby set aside with the following directions:

I. The discontinuation of the Appellant Workmen's services, effected without compliance with Section 6E and Section 6N of the U.P. Industrial Disputes Act, 1947, is declared illegal. All orders or communications terminating their services are quashed. In consequence, the Appellant Workmen shall be treated as continuing in service from the date of their termination, for all purposes, including seniority and continuity in service.

II. The Respondent Employer shall reinstate the Appellant Workmen in their respective posts (or posts akin to the duties they previously performed) within four weeks from the date of this judgment. **Their entire period of absence (from the date of termination until actual reinstatement) shall be counted for continuity of service and all consequential benefits, such as seniority and eligibility for promotions, if any.**

III. Considering the length of service, the Appellant Workmen shall be entitled to 50% of the back wages from the date of their discontinuation until their actual reinstatement. The Respondent Employer shall clear the aforesaid dues within three months from the date of their reinstatement.

IV. The Respondent Employer is directed to initiate a fair and transparent process for regularizing the Appellant Workmen within six months from the date of reinstatement, duly considering the fact that they have performed perennial municipal duties akin to permanent posts. In assessing regularization, the Employer shall not impose educational or procedural criteria retroactively if such requirements were never applied to the Appellant Workmen or to similarly situated regular employees in the past. To the extent that sanctioned vacancies for such duties exist or are required, the Respondent Employer shall expedite all necessary administrative processes to ensure these longtime employees are not indefinitely retained on daily wages contrary to statutory and equitable norms.

19. In view of the above, the appeal(s) filed by the workmen are allowed, whereas the appeal(s) filed by the Nagar Nigam Ghaziabad are dismissed."

C. The Judgment of the Apex Court dated 19.08.2025 passed in Civil Appeal No.8558 of 2018 reported in 2025 SCC ONLINE SC 1735 in "Dharam Singh and Others v. State of U.P. and Another", in particular, the relevant para Nos.13, 17, 18, 19 and 20 are extracted hereunder:

> "13. As we have observed in both Jaggo (Supra) and Shripal (Supra), outsourcing cannot become a convenient shield to perpetuate precariousness and to sidestep fair engagement practices where the work is inherently perennial. The Commission's further contention that the appellants are not "full-time" employees but continue only by virtue of interim orders also does not advance their case. That interim protection was granted precisely because of the long history of engagement and the pendency of the challenge to the State's refusals. It neither creates rights that did not exist nor erases entitlements that may arise upon a proper adjudication of the legality of those refusals.
>
> 17. Before concluding, we think it necessary to recall that the State (here referring to both the Union and the State governments) is not a mere market participant but a constitutional employer. It cannot balance budgets on the backs of those who perform the most basic and recurring public functions. Where work recurs day after day and year after year, the establishment must reflect that reality in its sanctioned strength and engagement practices. The long term extraction of regular labour under temporary labels corrodes confidence in public administration and offends the promise of equal protection. Financial stringency certainly has a place in public policy, but it is not a talisman that overrides fairness, reason and the duty to organise work on lawful lines.
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> 18. Moreover, it must necessarily be noted that "ad-hocism" thrives where administration is opaque. The State Departments must keep and produce accurate establishment registers, muster rolls and outsourcing arrangements, and they must explain, with evidence, why they prefer precarious engagement over sanctioned posts where the work is perennial. If "constraint" is invoked, the

record should show what alternatives were considered, why similarly placed workers were treated differently, and how the chosen course aligns with Articles 14, 16 and 21 of the Constitution of India. Sensitivity to the human consequences of prolonged insecurity is not sentimentality. It is a constitutional discipline that should inform every decision affecting those who keep public offices running.

"19. Having regard to the long, undisputed service of the appellants, the admitted perennial nature of their duties, and the material indicating vacancies and comparator regularisations, we issue the following directions:

i. Regularization and creation of Supernumerary posts: All appellants shall stand regularized with effect from 24.04.2002, the date on which the High Court directed a fresh recommendation by the Commission and a fresh decision by the State on sanctioning posts for the appellants. For this purpose, the State and the successor establishment (U.P. Education Services Selection Commission) shall create supernumerary posts in the corresponding cadres, Class-III (Driver or equivalent) and Class-IV (Peon/Attendant/Guard or equivalent) without any caveats or preconditions. On regularization, each appellant shall be placed at not less than the minimum of the regular pay-scale for the post, with protection of last-drawn wages if higher and the appellants shall be entitled to the subsequent increments in the pay scale as per the pay grade. For seniority and promotion, service shall count from the date of regularization as given above.

ii. Financial consequences and arrears: Each appellant shall be paid as arrears the full difference between (a) the pay and admissible allowances at the minimum of the regular pay-level for the post from time to time, and (b) the amounts actually paid, for the period from 24.04.2002 until the date of regularization/retirement/death, as the case may be. Amounts already paid under previous interim directions shall be so adjusted. The net arrears shall be released within three months and if in default, the unpaid amount shall carry compound interest at 6% per annum from the date of default until payment.

iii. Retired appellants: Any appellant who has already retired shall be granted regularization with effect from 24.04.2002 until the date of superannuation for pay fixation, arrears under clause (ii), and recalculation of pension, gratuity and other terminal dues. The revised pension and terminal dues shall be paid within three months of this Judgment.

iv. Deceased appellants: In the case of Appellant No. 5 and any other appellant who has died during pendency, his/her legal representatives on record shall be paid the arrears under clause (ii) up to the date of death, together with all terminal/retiral dues recalculated consistently with clause (i), within three months of this Judgment.

v. Compliance affidavit: The Principal Secretary, Higher Education Department, Government of Uttar Pradesh, or the Secretary of the U.P. Education Services Selection Commission or the prevalent competent authority, shall file an affidavit of compliance before this Court within four months of this Judgment.

20. We have framed these directions comprehensively because, case after case, orders of this Court in such matters have been met with fresh technicalities, rolling "reconsiderations," and administrative drift which further prolongs the insecurity for those who have already laboured for years on daily wages. Therefore, we have learned that Justice in such cases cannot rest on simpliciter directions, but it demands imposition of clear duties, fixed timelines, and verifiable compliance. As a constitutional employer, the State is held to a higher standard and therefore it must organise its perennial workers on a sanctioned footing, create a budget for lawful engagement, and implement judicial directions in letter and spirit. Delay to follow these obligations is not mere negligence but rather it is a conscious method of denial that erodes livelihoods and dignity for these workers. The operative scheme we have set here comprising of creation of supernumerary posts, full regularization, subsequent financial benefits, and a sworn affidavit of compliance, is therefore a pathway designed to convert rights into outcomes and to reaffirm that fairness in engagement and transparency in administration are not matters of grace, but obligations under Articles 14, 16 and 21 of the Constitution of India

D. The Division Bench of this Court in its Judgment dated 10.06.2013 passed in W.A.Nos.782 of 2010 and 854 of 2012 while upholding the Judgment dated 08.09.2010 passed in W.P.No.24377 of 2007 and C.C.No.48 of 2008 observed as under:-

"Further, it is manifest from the material on record that the services of the similarly placed persons who approached the law Courts were regularized. **The appellant-Corporation also issued various office orders/circulars dated 20.12.1989, 11.09.1992, 06.10.2007 and latest being 4.7.2009 for regularization of casual/contract employees,** It is also to be seen that Section 25-T of the ID Act prohibits unfair labour practice by any employer or workman. As can be seen from the factual scenario of the cases on hand, engaging the respondents for such a long and continuous period of time on casual basis is nothing but unfair labour practice attracting the provisions of Section 25-T of the ID Act. The learned Single Judge while relying on the decisions of the Apex Court, rightly held that the respondents are entitled to regularization as directed in the impugned orders, as the learned single Judge considered all the aspects of the matter in detail, in the proper perspective, which, in our considered view does not warrant interference in these appeals."

E. The Division Bench of this Court in its Judgment dated 21.04.2020 passed in I.A.Nos.1 of 2020 in 1 of 2019 and W.P.No.23057 of 2019 reported in 2020(4)ALD page 379 at paras 45, 48 and para 50 observed as under:-

"45. There is no dispute that petitioners have been working on daily wage since 1990 and have put in almost (30) years of service by now. They have been given minimum time-scale from the year 2000. They have been continuously working without any Court orders in their favour from 1990 till date.

48. It is not known why the 1st respondent has not followed the decision in Uma Devi's case (supra), as explained in M.L. Kesari's case (supra) and undertaken a one-time exercise of preparing the list of daily wage employees who had worked for more than ten (10) years without the intervention of the Courts and Tribunals as on 10.4.2006 and subject them to a process verification as to whether they are working against vacant posts and possess requisite qualifications for the posts, and if so, regularize their services.

50. Accordingly, the writ petition is allowed; the impugned orders dated 20.8.2019 passed by the 1st respondent rejecting the cases of petitioners for regularization of services on one-time basis are declared as illegal, arbitrary and violative of Articles 14, 16 and 21 of the Constitution of India; **the respondents are directed to regularize on one-time basis petitioners' services from the date each of the petitioners complete 10 years of service on daily wages from the initial dates of their appointment. But, they shall not be entitled to any monetary relief. The said exercise shall be done within two (2) weeks from the date of receipt of copy of the order."**

F. The judgment of this Court, dated 06.12.2022 passed in W.P.No.27602 of 2019 in Manipati Lingam& Others and in particular para Nos. 15 & 16 are extracted hereunder:-

15. A bare perusal of the observations of the Apex Court in various judgments referred to and extracted above clearly indicate that the claim of the petitioners for regularization has to be necessarily considered in view of the fact that the concept of

one time measure as explained at paras 6 to 10 of the Judgment of the Apex Court in State of Karnataka v M.L.Kesari which in clear explicit terms said that one time exercise will be concluded only when all the employees who are entitled to be considered in terms of para 53 of Uma Devi are so considered and the mandate and object in Uma Devi's case as explained in para 53 of the said judgment, to do periodic regular recruitment of qualified personnel for vacant posts and regularise the services of those engaged for more than 10 years, as a one time measure and the clarification of Uma Devi's case and the observation as held at para '5' of the decision of the Supreme Court in State of Karnataka and Others vs. M.L.Kesari and others that Uma Devi casts a duty upon the concerned Government and Instrumentality to take steps to regularize ton services of those regularly appointed employees who had served for more than ten years without the benefit or protection of any interim orders of Courts or Tribunals as a one time measure has not been diluted and the observations in para 54(2) of the Judgement of the Apex Court State of Punjab and Others Vs.Jagjit Singh still hold good, which has clearly said that a legally permissible scheme has to be framed in respect of daily wagers, ad 10c or contractual appointees who are not appointed against sanctioned posts, but their services are availed continuously with notional breaks by the State Government or its instrumentality for a sufficient long period ie., for ten years.

16. This Court is of the firm opinion that the plea of the 3'd respondent temple that the petitioners did not satisfy the requirement of completing five years of service as on 25.11.1993 and further that the Petitioners are not working against any sanctioned posts and hence, they are not entitled to be considered for regularisation as indicated in the letter of the 3rd respondent dated 31.10.2011 and as indicated in the order impugned of the 3rd respondent dated 06.08.2019 and also in their counter affidavit filed before the High Court in the present writ petition at para 13 of the counter cannot be sustained, as per the observations of the various Apex Court judgments referred to and extracted above, in view of the simple fact that the petitioners are rendering their services to the 3rd respondent temple continuously from 1992 till as on date i.e. for the last nearly 29 years. **The 3rd respondent temple cannot deny the relief of regularization to the petitioners as per para 53 of the decision in Umadevi's case, which permits one time exercise of regularization to be done for personal**

employed on temporary basis/daily wages etc, who have rendered continuous service for more than 10 years. The 3rd respondent temple cannot take the services of the petitioners for years together without regularising their services and indulge in such a practice inconsistent with their obligation to function in accordance with the constitution as observed by the Apex Court in Nihal Singh and Others Vs. State of Punjab which clearly held that "sanctioned posts do not fall from heaven" and the State has to create them by a conscious choice on the basis of some rational assessment of the need.

The aforesaid judgment had been upheld by the Apex Court.

G. The Judgment of this Court dated 06.12.2022 passed in W.P.No.27602 of 2019 which pertains to regularization of 35 NMRS of Sri Lakshmi Narasimha Swamy Temple, Yadadri, Nalgonda District, which had been upheld by the Division Bench of this Court in W.A.No.937 of 2023 dated 10.10.2023 and also confirmed by the order of Apex Court dated 09.08.2024 in SLP No.32847 of 2024.

H. The judgment of this Court reported in AIRONLINE 2022 TEL 242, dated 15.11.2022 in M.Anjaiah Vs. Director, Telugu Academy, Himayathnagar, Hyderabad and in particular para Nos.18 & 21 are extracted hereunder:-

18. This Court opines that the engagement of the persons like the petitioners through outsourcing agencies/ intermediaries for more than 15 years after the decision in Uma Devi, without undertaking any exercise to identify regularly the vacancies in the above posts in the Respondent Academy i.e., Telugu

Academy, Himayathnagar, and fill them up as per the applicable rules by properly qualified personnel, and engaging persons of "outsourcing" basis through intermediaries/contractors, is in violation of the law laid down in Uma Devi's case by the respondents and it also violates Articles 14, 16 and 21 of the Constitution of India.

21. Taking into consideration the contention of the Respondent that the Respondent organization has been bifurcated on 26.04.2022, the Respondents while continuously engaging the services of the petitioners directly henceforth, are directed to consider the case of the petitioners for regularisation of their services in the posts whose work they are discharging now, by ignoring the existence of the intermediaries/ agencies/contractors in the said posts of Hamalis divided into 3 categories namely skilled, semi-skilled and un-skilled in the light of the judgments of the Apex Court referred to and discussed above and which were followed in subsequent cases by this Court within two (2) months from the date of receipt of a copy of the order and pass appropriate orders in accordance to law and communicate the decision to the Petitioners.

The aforesaid judgment also attained its finality, since petitioners in the said writ petition had been regulairzed in pursuance to the orders of the Court.

I. The relevant portion of the judgment of this Court, reported in 2023(1) ALD 259 (TS), dated 08.08.2022 in Durgam Rajender Vs. A.P.State Handloom Weaver's Co-operative Society Ltd., Hyderabad and Others is extracted hereunder:-

It is clear as from the facts of the present case referred to above that the termination of the petitioner was ultimately held to be illegal and the petitioner was reinstated into service on 01.06.1992 with continuity of service and with attendant benefits

duly setting aside the order of removal dated 20.05.1988 as per the order of the Industrial Tribunal. There is also a clear admission at paras 11 and 12 in the counter affidavit filed by the respondents that the services of Kumari M.Kalavathi and Sri G.S.Anna Rao are regularized in the year 2009 as per Court orders. Hence, there is no denial to the Fact that the services of juniors of the petitioner have been considered for regularization. In such an event, the respondents are under obligation to consider the case of the petitioner for regularization **because the law laid down by the Apex court in Umadevi's case refers to regularization of services of daily wage/ad hoc/casual employee's as well.**

12. In view of the law laid down in the judgments referred to and discussed above i.e.M.L.Kesari and others, case referred 1st supra, Umadevi's case referred 2nd supra and the order dated ,13.02.2015 passed in W.A.No.108 of 2015, the writ petition is allowed and the respondents are directed to regularize to regularize the services of the petitioner in terms of the ratio laid down it the aforesaid decision within a period of two months from the date of receipt of a copy of this order. There shall be no order as to costs.

J. The judgment of this Court, reported in 2018(2) ALD 282(DB), dated 19.09.2017 in U.V.S.R. Prasad and Others Vs. State of Andhra Pradesh and another and in particular para nos.9, 10 & 16 are extracted hereunder:-

9. We have carefully considered the respective submissions of the learned Counsel for the parties.

10. From the material discussed above and the admissions made in the counter-affidavit of respondent No.2, it is not in dispute that the petitioners have been working as Work Inspectors from the years 1990 – 1992. It is also not in dispute that by the time the judgment in Uma Devi (1 supra) was rendered in the year 1996, they have completed more than 10 years of service. Para 53 of the Judgment in Uma Devi (1 supra) reads as under:

"One aspect needs to be clarified. There may be cases where

irregular appointments (not illegal appointments) as explained in S.V.Narayanappa (1967 (1) SCR 128), R.N.Nanjundappa (1972 (1) SCC 409) and B.N.Nagarajan (1979 (4) SCC 507) and referred to in Para 15 above of duly qualified persons in duly sanctioned vacant posts might have been made and the employees have continued to work for ten years or more but without the intervention of orders of the courts or of tribunals. The question of regularization of the services of such employees may have to be considered on merits in the light of the principles settled by this Court in the cases above-referred to and in the light of this judgment. In that context, the Union of India, the State Governments and their instrumentalities should take steps to regularize as a one-time measure, the services of such irregularly appointed, who have worked for ten years or more in duly sanctioned posts but not under cover of orders of the Courts or of Tribunals and should further ensure that regular recruitments are undertaken to fill those vacant sanctioned posts that require to be filled up, in cases where temporary employees or daily wagers are being now employed. The process must be set in motion within six months from this date."

16. It is trite that the law declared by the Supreme Court is binding throughout the country under Article 141 of the Constitution of India. It is noteworthy that by the time the judgment in Uma Devi (1 supra) was rendered, the provisions of Act 2 of 1994 and G.O.Ms.No. 212, dated 22-04-1994, were in existence. The Supreme Court, while denouncing the practice of regularization and absorption of persons, who entered service through backdoors by giving a go-bye to the due procedure prescribed for appointments to public posts, consciously ordered for onetime absorption/ regularization of those, who were working for a period of not less than 10 years. It has given directions in this regard to all the State Governments and also Union of India. The Supreme Court is presumed to be conscious of various State enactments such as Act 2 of 1994 and executive orders such as G.O.Ms.No. 212, dated 22-04-1994, while giving directions in Para No. 53 of the judgment in Uma Devi (1 supra). But still, it has not made any exception in favour of the States whee State enactments banning regularization/absorption exist. **Therefore, Act 2 of 1994 and G.O.ms.No.212, dated 22.04.1994, do not whittle down the width and the judgment in Manjula Bashini (2supra) does not lower the trajectory of the directions issued by the Supreme Court in para 53 of its judgment in Uma Devi (1 supra). It is,**

therefore, not permissible for the respondents to take shelter under Act 2 of 1994 and G.O.Ms.No.212, dated 22.04.1994, to deny regularization to the petitioner, who have, admittedly, satisfied the criteria laid down in para No.53 of the judgment in Uma Devi (1 Supra).

K. For the aforementioned reasons, order, dated 27.6.2017, in OA No.1442 of 2014, on the file of the Tribunal is set aside and **the writ petition is allowed with the direction to the respondents to consider regularisation of the services of the petitioners against the existing vacancies of Work Inspectors and appoint them subject to their satisfying the criteria laid down in Para No.53 of the judgment in *Uma Devi's case* (supra). This process must be completed within two months from the date of receipt of a copy of this order."**

L. The Division Bench judgment, dated 05.11.2024 passed in W.A.No.1324 of 2024 in The State of Telangana & another Vs. B.Sreedevi and in particular para No.7 is extracted hereunder:-

7. Having considered the rival submissions made by the learned counsel on either side, this Court is of the view that the learned Single Judge has rightly allowed the writ petition in favour of the respondent. If the respondent has not fulfilled the conditions stipulated in G.O.Ms.No.221, dated 20.06.1995, the appellants ought to have disengaged the services of the respondent, but having continued the respondent for 32 long years, the appellants ought not to have denied regularization to the

respondent. Further, this Court granted interim direction on 13.10.2018 in I.A.No.1 of 2018 in W.P.No.38880 of 2018 directing the appellants to consider the case of the respondent for regularization of her services. **Without assigning any reasons, the appellants have rejected the case of the respondent in a single line order dated 22.06.2019. When once the Court directs the appellants to consider the case of the respondent, and if the appellants reject the same, then the Courts can give positive Mandamus. This issue was considered by the Apex Court in State of Mysore v. Syed Mahmood Alf Therefore, learned Single Judge was justified in directing the appellants to regularize the services of the respondent as Part time-Lecturer and extend all consequential benefits.** We are also not appreciating the fact that the writ appeal is filed only after the respondent has attained the age of superannuation as Part-time Lecturer with a delay of more than 366 days.

7.1 Further, a perusal of the rejection order passed by the appellant on 22.06.2019 discloses that the issue of aided and un-aided services was discussed. Aided and un-aided services would apply only to private educational institutions but not to Government institutions. The manner in which the case of the respondent was rejected shows total non-application of mind and the same is liable to be rejected as admittedly the respondent is working in a Government institution. Therefore, the learned Single Judge was justified in allowing the writ petition in favour of the respondent and this Court is not inclined to interfere with the same.

15. In so far as the plea of the Government Pleader for Services-I appearing on behalf of the respondents that this Court cannot grant any relief to the petitioner herein in view of the Division Bench judgment of this Court, dated 19.11.2024 passed in W.P.Nos.10744, 11643, 13223 &14300 of 2023 and W.P.(TR) No.5972 of 2017 and the

specific orders of the Apex Court in the appeal preferred by the Government on the said order passed by the Division Bench of this Court directing the status-quo maintained is not tenable and the said plea is rejected, in view of the view and law laid down by the Apex Court judgment, dated 17.08.2023 reported in AIRONLINE 2023 SC 702 in Secunderabad Club ETC. Vs. CIT.-V. ETC. (referred to and extracted below) and in the judgment of the Apex Court reported in (2023) 16 SCC 458 (referred to and extracted below)in Career Institute Educational Society Vs. Om Shree Thakurji Educational Society and in particular para Nos.6 and 7 are extracted hereunder:-

6. The first judgment in State of Gujarat Vs. Utility Users Welfare Association reported in 2018 (6) SCC Page 21 applies, what is called, "the inversion test" to identify what is ratio decidendi in a judgment. To test whether a particular proposition of law is to be treated as the ratio decidendi of the case, the proposition is to be inversed, i.e. to remove from the text of the judgment as if it did not exist. If the conclusion of the case would still have been the same even without examining the proposition, then it cannot be regarded as the ratio decidendi of the case.

7. In Jayant Verma Vs. Union of India reported in 2018 (4) SCC Page 743, this Court has referred to an earlier decision of this Court in Dalbir Singh & Ors. vs. State of Punjab reported in 1979 (3) SCC Page 745 to state that it is not the findings of material facts, direct and inferential, but the statements of the principles of law applicable to the legal problems disclosed by the facts, which is the vital element in the decision and operates as a precedent, albeit operates as res judicata. Even the conclusion

does not operate as a precedent. Thus, it is not everything said by a Judge when giving judgment that constitutes a precedent. The only thing in a Judge's decision binding as a legal precedent is the principle upon which the case is decided and, for this reason, it is important to analyse a decision and isolate from it the obiter dicta.

16. In the judgment of the Apex Court reported in AIRONLINE 2023 SC 702, dated 17.08.2023 in Secunderabad Club ETC Vs. CIT –V E.T.C. and in particular para Nos.13, 16 & 22 are extracted hereunder:-

13. It is a settled position of law that only the ratio decidendi of a judgment is binding as a precedent. In B. Shama Rao vs. Union Territory of Pondicherry, AIR 1967 SC 1480, it has been observed that a decision is binding not because of its conclusion but with regard to its ratio and the principle laid down therein. In this context, reference could also be made to Quinn vs. Leathem, 1901 AC 495 (HL), wherein it was observed that every judgment must be read as applicable to the particular facts proved, or assumed to be proved, since the generality of the expressions which may be found there are not intended to be expositions of the whole law, but governed and qualified by the particular facts of the case in which such expressions are found. In other words, a case is only an authority for what it actually decides.

16. The legal principles guiding the decision in a case is the basis for a binding precedent for a subsequent case, apart from being a decision which binds the parties to the case. Thus, the principle underlying the decision would be binding as a precedent for a subsequent case. Therefore, while applying a decision to a later case, the court dealing with it has to carefully ascertain the principle laid down in the previous decision. A decision in a case takes its flavour from the facts of the case and the question of law involved and decided. **However, a decision which is not express and is neither founded on any reason nor proceeds on a consideration of the issue cannot be deemed to be law declared, so as to have a binding effect as is contemplated under Article 141, vide State of Uttar Pradesh vs. Synthetics and Chemicals Ltd. (1991) 4 SCC 139. Article 141 of the Constitution states that the law**

declared by the Supreme Court shall be binding on all the courts within the territory of India. All courts in India, therefore, are bound to follow the decisions of Supreme Court. This principle is an aspect of judicial discipline.

22. Further, the precedential value of an order of the Supreme Court which is not preceded by a detailed judgment would be lacking inasmuch as an issue would not have been categorically dealt with. What is of essence in a decision is its ratio and not every observation found therein, nor what logically follows from the various observations made therein.

17. It is pertinent to refer and bring on record the details of the recent judgment, dated 13.02.2026 of the Division Bench of Apex Court reported in AIR 2026 Supreme Court 997 in Pawan Kumar and Others Vs. Union of India and Others, referring in particular to the judgments of the Apex Court in Ravi Verma and Others reported in AIR Online 2018 SC 1606 as well as in Raman Kumar and Others reported in AIR Online 2023 SC 854 which directed for regularization of services of the appellants there under from 01.07.2006 on the same terms as made applicable in Ravivarma and Others as well as in Raman Kumar and Others and further directed for release of benefits to the appellants there under within a period of three months from the date of the said order. The Apex Court further specifically placed reliance on para

Nos.13,20 & 21 of Jagoo case reported in AIR 2025 SC Page 296 while passing the said order.

It is the specific case of the appellant there under that they had been engaged as Casual Workers, the appellant Nos.1 to 3 came to the engaged as causal workers on the post of Sweeper from 01.10.1997, 01.05.1998 and 01.10.1997 respectively. Appellant No.4 was casually engaged as Cook from 27.12.1993 and their names had been sponsored from employment exchange and after being duly interviewed they were engaged as daily workers.

It is further specific case of the appellants there under that services of the appellants are liable to be regularized as they are similarly situated as other daily wage workers in the Income Tax Department whose services have been regularized pursuant to various orders passed by this Court. The Apex Court allowed the said Appeal in favour of the appellants there under vide its judgment, dated 13.02.2026 very clearly observing that appellants had been working continuously as daily wage workers from 2005 and the Income Tax Department could not have discriminated in matter of regularizing services

of similarly situated employees. The Apex Court observed that services of appellants were liable to regularized as they were similarly situated as other daily wage workers whose services had been regularized pursuant to various orders passed by Supreme Court.

The principle laid down by the Apex Court in all the aforesaid judgments apply to the facts of the present case as well since it is borne on record vide letters, dated 14.12.2012, 12.03.2013, 19.05.2015, 11.12.2019, G.O.Ms.No.38, dated 30.04.2023 that efforts had been made by the official respondents herein for regularization of eligible contract personnel. Hence, this Court opines that petitioner is entitled for consideration of petitioner's case for regularization of petitioner's services with effect from the date of petitioner's initial appointment i.e., 16.12.2006.

18. Taking into consideration:-

a) The aforesaid facts and circumstances of the case.

b) The submissions put-forth by the learned senior designated counsel appearing on behalf of the petitioner and learned Government Pleader for Services-I appearing on behalf of the respondents.

c) The counter affidavit filed on behalf of the respondents.

d) The order, dated 20.03.2019 passed in W.P.(TR)No.1883 of 2017

e) The contents of the speaking order, vide Rc.No.16153/G2/2019, dated 25.02.2020 issued by the Director of Medical Education, Telangana State, Hyderabad, in pursuance to the directions of this Court, dated 20.03.2019 passed in W.P(TR).No.1883 of 2017 (referred to and extracted above)

f) The contents of G.O.Ms.No.38, dated 30.04.2023 issued by the Government of Telangana (referred to and extracted above)

g) The contents of the various letters, dated 20.06.2009, 19.05.2015 ,25.02.2020, 30.12.2006, 14.12.2012 & 11.12.2019 (referred to and extracted above)

h) The observations of the various Courts in the various judgments (referred to and extracted above) and again enlisted below:

(i) 2025 INSC 144
(ii) 2024 LawSuit(SC) 1209
(iii) AIRONLINE 2023 SC 702
(iv) (2023) 16 SCC 458
(v) AIRONLINE 2022 TEL 242

(vi) 2023(1) ALD 259 (TS)

(vii) 2018(2) ALD 282 (DB)

(viii) SCC ONLINE SC 1735

(ix) AIR 2026 SC 997

(x) The judgment of this Court, dated 06.12.2022 passed in W.P.No.27602 of 2019

(xi) SLP No.32847 of 2024

(i) The Division Bench order of this Court dated 25.11.2024 passed in W.A.No.1324 of 2024, dated 25.11.2024.

(j) The Division Bench order of this Court dated 10.06.2013 passed in W.A.Nos.782 of 2010 and 854 of 2012 while uploading the Judgment dated 08.09.2010 passed in W.P.No.24377 of 2007 and C.C.No.48 of 2008

k) The Division Bench order of this Court dated 21.04.2020 passed in I.A.Nos.1 of 2020 in 1 of 2019 and W.P.No.23057 of 2019

l) The discussion and conclusion as arrived at paragraph Nos. 5 to 17 of this order,

The present writ petition is allowed as prayed for. This Court opines that the subject issue pertaining to the request of the petitioner for consideration of petitioner's

case for regularization w.e.f. the date of petitioner's original date of appointment i.e., 16.12.2006 with all consequential benefits needs to be considered by the Director of Medical Education, Telangana State, Hyderabad i.e., respondent No.2, without reference to the speaking order, dated 25.02.2020 issued by the Director of Medical Education i.e., the 2nd respondent rejecting petitioner's request to continue the petitioner in service in the post of Physical Director. The respondent Nos.2 and 3 are directed to reconsider the subject issue, pertaining to consideration of petitioner's case for regularization w.e.f. petitioner's original date of appointment i.e., 16.12.2006, in accordance to law, in conformity with principles of natural justice, by providing an opportunity of personal hearing to the petitioner herein, duly taking into consideration the latest law laid down by the Apex Court in the various judgments (referred to and extracted above), duly examining the relevant material documents in support of petitioner's claim and the various correspondence vide letters, dated 16.12.2006, 24.01.2007, 30.04.2007, 15.06.2007, 11.05.2008, 07.07.2008,25.09.2008, 04.10.2008, 14.12.2012,

19.05.2015, G.O.Ms.No.38 dated 30.04.2023, 12,03,2013, 10.06.2015 & 11.12.2019 that took place pertaining the subject issue between the official respondents herein and pass appropriate orders, within a period four (04) weeks from the date of receipt of copy of the order and duly communicate the decision to the petitioner. However, there shall be no order as to costs.

Miscellaneous petitions, if any, pending in this Writ Petition, shall stand closed.

SD/-P. PONNA KRISHNA
ASSISTANT REGISTRAR

//TRUE COPY//

SECTION OFFICER

One Fair Copy to the Hon'ble MRS JUSTICE SUREPALLI NANDA
(For Her Ladyships Kind Perusal)

To,

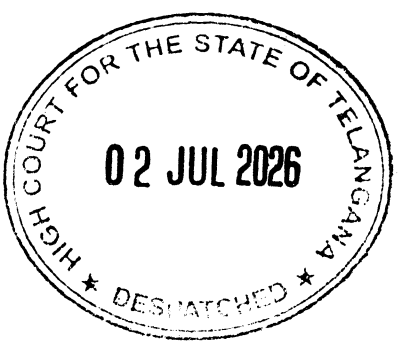
1. The Principal Secretary, Medical and Health Department, Dr. B.R.Ambedkar Telangana Secretariat, Hyderabad, Telangana State.
2. The Director of Medical Education, Government of Telangana, Sultan Bazar, Hyderabad.
3. The Principal, Osmania Medical College, Koti, Hyderabad.
4. 11 LR Copies
5. The Under Secretary, Union of India, Ministry of Law, Justice and Company Affairs, New Delhi.
6. The Secretary, Telangana Advocates Association, Library, High Court Buildings, Hyderabad.
7. One CC to SRI AVADESH NARAYAN SANGHI, Advocate [OPUC]
8. Two CCs to GP FOR SERVICES-I, High Court for the State of Telangana, at Hyderabad [OUT]
9. Two CD Copies

BSR
BS

CC TODAY

HIGH COURT

DATED: 08/06/2026



ORDER

WP.No.35058 of 2023

ALLOWING THE WRIT PETITION,

WITHOUT COSTS

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kpr

01/7/26